

Supplementary Opinion of the National Commission for Data Protection regarding Bill No. 7741 amending

1° the amended law of July 18, 2018 on the Grand Ducal Police;

2° the amended law of July 5, 2016 reorganizing the State Intelligence Service;

3° the Penal Code.

Deliberation No. 57/AV31/2023 of July 7, 2023.

Introduction

1.

In accordance with Article 8 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection (hereinafter referred to as the “law of August 1, 2018 organizing the CNPD”), transposing Article 46, paragraph 1, letter (e) of Directive (EU) No. 2016/680 of April 27, 2016 on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of preventing criminal offenses, investigations, and prosecutions in this regard or the execution of criminal sanctions, and on the free movement of such data, and repealing Framework Decision 2008/977/JHA of the Council (hereinafter referred to as the “Directive”), within the framework of the law of August 1, 2018 concerning the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security (hereinafter referred to as the “law of August 1, 2018 concerning data processing in criminal matters”), the National Commission for Data Protection (hereinafter referred to as the “National Commission” or the “CNPD”) “advises the Chamber of Deputies, the Government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to the processing of personal data.”

2.

Article 36, paragraph 4 of the GDPR states that “[m]ember States consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing.”

3.

On March 16, 2021, the CNPD notified Bill No. 7741 amending 1° the amended law of July 18, 2018 on the Grand Ducal Police; 2° the amended law of July 5, 2016 reorganizing the State Intelligence Service; and 3° the Penal Code (hereinafter referred to as the “bill”).

4.

On March 6, 2023, the Committee on Internal Security and Defense of the Chamber of Deputies adopted the amendments related to the bill (hereinafter referred to as the “amendments”).

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5.

By letter dated May 5, 2023, the Minister of Internal Security invited the National Commission to notify the parliamentary amendments.

1. The purposes of access to files from other administrations

6.

In its opinion dated March 16, 2023, the National Commission noted with regret that, according to the provisions of the draft law, members of the Grand Ducal Police can access the databases referred to “for administrative purposes,” meaning an additional purpose to access for administrative police reasons, and not otherwise defined. The CNPD welcomes the replacement of the terms “for administrative purposes” with a reference to possible access to files from other administrations for “other purposes provided for by special laws,” thus responding to the formal opposition expressed by the Council of State.

2. The list of accesses to files from other administrations

7.

The initial draft provided for two different lists of files accessible to members of the Grand Ducal Police. The National Commission understands that, following the opinion of the Council of State, the authors of the amendments have removed the list of files for which access by members of the Police is provided and regulated by existing special laws. The authors of the amendments explain that "[i]n the interest of legal certainty, the files for which access by the Police is provided by existing special laws are no longer part of the list."

8.

The CNPD takes note of the extension of the list of files accessible to members of the Grand Ducal Police, as provided in Article 43, paragraph 1, of the law, to the identity card register. The National Commission also understands the inclusion in that paragraph of files for which access is indeed provided by a special law, but for which the special laws are silent on the conditions of access by members of the Grand Ducal Police.

3. The reason for consulting files from other administrations

9.

As provided by the amendments, Article 43, paragraph 4, point 2 in fine, of the law stipulates regarding logging that "information relating to members of the Police who have consulted [...] is recorded and retained for a period of at least five years so that the reason for the consultation can be traced." The authors of the amendments thus remove "the reason for the consultation" from the list of recorded information and provide that it "can be traced" based on other information. The authors do not explain the choice to revert to the wording of the said passage in Article 43 of the law as currently in force. The National Commission is of the opinion that the fact that the reason "can be traced" does not correspond to Article 24 of the law of August 1, 2018, relating to data processing in criminal matters, which states that "logs of consultation and communication operations allow for establishing the reason [...]." Furthermore, the CNPD notes that, following the amendments, Article 43quater, paragraph 3, point 4, of the law provides that the profiles and modalities of access are determined based on the "reason for access" and that "the Police determines specific reasons for access according to the type of legal mission of the Police or other administrations within the framework of which data processing is required." Regarding the said Article 43quater, the authors of the amendments explain that "all members of the Police and members of other administrations seconded..."

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to the Police are in all cases required to indicate the reason for the consultation of the data based on the legal mission they are executing." In order to comply with Article 24 of the law of August 1, 2018, concerning data processing in criminal matters, the National Commission considers it necessary to amend Article 43 to once again include the reason for the consultation in the list of recorded information.

4. The control and monitoring of compliance with the conditions of access to data by members of the Grand Ducal Police

10. The CNPD takes note of the removal of paragraph 8 of Article 43 concerning the control and monitoring of access conditions by the CNPD, while the Council of State, as cited by the authors of the amendments, believes that this control "is already largely covered by the general missions assigned to the CNPD by law."

11. Indeed, following the entry into force of the law of August 1, 2018, concerning data processing in criminal matters, the data controller, in this case, the Grand Ducal Police, is subject to the principle of accountability as defined in Article 3, paragraph 4, of the said law. This principle of "accountability" requires the data controller to be "able to demonstrate that [paragraphs 1, 2, and 3 of this article] are respected." Furthermore, pursuant to Article 24, paragraph 2, of the said law, it is the responsibility of the data controller to establish self-monitoring procedures.

12. Subsequently, the CNPD can, based on its missions and powers as defined in Articles 7 and 14 of the law of August 1, 2018, organizing the CNPD, as well as in accordance with Article 24, paragraph 3,

of the law of August 1, 2018, concerning data processing in criminal matters, control and monitor compliance with the conditions of access to the various files by members of the Grand Ducal Police.

5. The quality of the CNPD's control regarding data processing operations carried out for judicial police missions

13. The authors of the amendments echo the opinion of the Council of State, and incidentally the common opinion of the Prosecutor's Offices of Luxembourg and Diekirch and the General Prosecutor's Office, in which the "Council of State aligns itself with the questions raised by the judicial authorities in their opinions, which concern the scope of such control, particularly in the context of an investigation or judicial instruction covered by the secrecy of the instruction provided for in Article 8 of the Code of Criminal Procedure. How could this supervisory authority concretely assess the necessity and proportionality of access to data processing?"

14. However, the control of data processing operations carried out by members of the Grand Ducal Police, first by the data controller itself and then by the supervisory authority, cannot be qualified as "purely formal" simply because one element of the control, among others, relies on the existence of a procedural act issued by a magistrate whose validity is subject to other control procedures.

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15. Indeed, according to the understanding of the CNPD, the observations of the Council of State are limited to judicial police missions and do not generally concern the control of access to personal data on the grounds of an administrative police mission or a mission arising from a special law.

16. Furthermore, the control exercised by the CNPD over the Police based on the law of August 1, 2018, relating to data processing in criminal matters is not exclusive. Consequently, the magistrate in charge of the investigation, as well as the courts, also ensure, primarily based on the provisions of the Code of Criminal Procedure, the proportionality and necessity of the data collected in the context of a criminal investigation by members of the Grand Ducal Police. However, the CNPD cannot agree with the conclusion that "the control of the CNPD risks being purely formalistic" or that the control should fall under the Judicial Control Authority.

17. Regarding the question of the division of competencies between the National Commission and the ACJ, it should be noted that Article 5 of the law of August 1, 2018, organizing the CNPD, provides that "the CNPD is not competent to control the operations of processing personal data carried out by the courts of the judicial order, including the public prosecutor's office, and of the administrative order in the exercise of their judicial functions." However, the data processing referred to by the provision under examination is carried out by members of the Grand Ducal Police based on the missions assigned to the Grand Ducal Police. These processes are not carried out by "courts of the judicial order, including the public prosecutor's office [...] in the exercise of their judicial functions." Even when acting under the instruction of a magistrate, members of the Grand Ducal Police are not to be confused with the courts of the judicial order and do not exercise judicial functions. The organizational and security modalities are, moreover, defined by the Grand Ducal Police and by the administrations implementing the databases referred to by the provision under examination without any judicial authority participating.

18. The inquiries of the judicial authorities and the Council of State regarding the effectiveness or adequacy of the control by the CNPD thus only concern the scenarios where members of the Grand Ducal Police act within the framework of their judicial police missions covered by the secrecy of the investigation provided for in Article 8 of the Code of Criminal Procedure. The various opinions seem to imply that the Grand Ducal Police should, in these cases, oppose said secrecy of the investigation to the CNPD acting in the exercise of its control missions.

19. Article 8 of the Code of Criminal Procedure provides that:

"(1) Except in cases where the law provides otherwise and without prejudice to the rights of the defense, the procedure during the investigation and instruction is secret.

(2) Subject to the exceptions arising in domestic law, in particular from international commitments regarding international cooperation, any person participating in this procedure is bound by professional secrecy under the conditions and penalties of Article 458 of the Penal Code.

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(3) The Attorney General of the State or the State Prosecutor may make public information regarding the progress of a procedure, while respecting the presumption of innocence, the rights of the defense, the right to privacy and dignity of individuals, as well as the necessities of the investigation. [...]

20. The laws of August 1, 2018 establish oversight by the CNPD (National Commission for Data Protection) of data processing operations carried out by the Grand Ducal Police. Consequently, by providing for oversight of data processing operations conducted within the framework of judicial police missions by the National Commission, the legislator has at least temporarily and incidentally allowed the CNPD to be aware of the existence of a criminal investigation and national security matters, as well as the minimal elements necessary to effectively carry out its oversight missions, for example, instructions given by a judicial authority to members of the Grand Ducal Police that may support the reason indicated during access to personal data.

21. The CNPD refers to Article 16 of the law of August 1, 2018 concerning data processing in criminal matters, which provides for the exercise of the rights of the data subject and verification by the supervisory authority when these rights are limited to "avoid hindering investigations, searches, or official or judicial procedures [...] avoid harming the prevention or detection of criminal offenses, investigations or prosecutions in this regard, or the execution of criminal sanctions." The aforementioned Article 16 thus provides that "[i]n the cases referred to in Article 12, paragraph 3, Article 14, paragraph 1, and Article 15, paragraph 4, the rights of the data subject may be exercised through the competent supervisory authority." In the context of such indirect exercise of the rights of the data subject, the National Commission will be required to "carry out all necessary verifications or examinations."

22. It is not unusual for a data controller to carry out data processing operations following a legal obligation or an injunction received from an administrative or judicial authority. Consequently, in case of doubts regarding the legality of access to personal data, the Grand Ducal Police may present relevant explanations, including proving a link to a criminal investigation in order to allow the CNPD to carry out the necessary verifications. Thus, the oversight of the CNPD is not purely formal even if it does not verify the legality and appropriateness of the instruction issued by a judicial authority within the framework of a criminal investigation justifying the data processing operations carried out by members of the Grand Ducal Police.

23. Furthermore, the CNPD refers to the professional secrecy to which all persons exercising or having exercised an activity for the CNPD are bound, in accordance with Article 42 of the law of August 1, 2018 concerning the organization of the CNPD. The National Commission reminds that its oversight primarily aims to ensure respect for the fundamental right to the protection of personal data of the data subjects and is thus part of the guarantees, in a democratic society, necessary to justify interference with their fundamental rights. Consequently, it is more about additional guarantees in a democratic society for the data subjects.

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6. Special Guarantees for the Processing of so-called "Sensitive" Data

24.

The authors of the amendments note that "[i]n its opinion of February 18, 2021, the Public Prosecutor's Office points out that Article 43-1 (becoming Article 43quater), paragraph 2 does not reserve specific processing nor grant special guarantees for the so-called 'sensitive' data provided for in Article 9 of the aforementioned law of August 1, 2018." In its opinion of March 16, 2021, the CNPD considered "that it

would be appropriate to strengthen the appropriate guarantees, for example by drawing more from Belgian law, particularly Article 44/2, paragraph 2. On the one hand, this provision better frames the purposes for which this type of data may be processed and, on the other hand, provides strict rules regarding their use, access, and additional security rules to be implemented by the data controller.”

25. However, although the authors cite the opinion of February 18, 2021, from the Public Prosecutor's Office, the CNPD regrets that the authors have failed to include more specific guarantees in Article 43quater. The National Commission refers, for the rest, to its explanations regarding the necessity to further frame the specific processing referred to in the said article by specific legal provisions.

7. Access by Members of Another Administration

26.

The authors of the amendments propose to modify Article 43quater, paragraph 3, point 3°, in order to place members of another administration seconded to the Police on “an equal footing with the members of the Police to access the data.” Furthermore, it is specified that “[t]he Police determines specific access reasons according to the type of legal mission [...] of other administrations.” Article 43quinquies, paragraph 1, second sentence, now provides that “[t]he active part contains the data to which [...] the members of administrations seconded to the Grand Ducal Police and the members of the administrations referred to in paragraph 6 need to access in the context of their legal missions [...]”. The said paragraph 6 explicitly states that access may be granted “to officials of the Customs and Excise Administration who have the status of judicial police officers,” “for the exercise of their judicial police missions [...]” and the amendments make changes regarding the determination of access for members of the General Inspectorate of the Police. The National Commission has no observations to make on this matter.

27.

Furthermore, paragraph 3 of the said paragraph 6 now provides that “members of the National Security Authority responsible for security investigations” may be granted direct access to part of the data contained in the central file, “with the exception of minutes and reports concerning the individual.” The CNPD takes note of the explanations from the authors of the amendments and the conditions under which the consultation of the data may take place by the said members of the ANS. The National Commission welcomes these modifications as they provide a sufficient degree of predictability and clarity while allowing the ANS to carry out its missions related to security investigations.

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8. Retention periods in specific files

28.

Article 43quater, paragraph 4, of the draft law as resulting from the amendments provides that “(4) Without prejudice to the provisions of Article 43quinquies, the retention period of the data is defined by the data controller. Data that falls under the missions of administrative police or any other mission conferred upon the Police by law shall be deleted no later than at the time of the deletion of the same data in the active part of the central file, unless a specific legal provision provides for a longer period. Data that falls under the missions of judicial police shall be deleted no later than at the time of the transfer of the same data to the passive part of the central file, unless a specific legal provision provides for a longer period.”

29. The National Commission takes note of these clarifications, allowing for the definition of different retention periods depending on the various missions conferred upon the Police. It refers to the developments in its initial opinion.

30.

Furthermore, Article 43quinquies, paragraph 15, of the draft law as resulting from the amendments provides that

“Reports relating to missing persons, addressed to the judicial authorities and which do not concern an ongoing investigation or a specific offense, shall be retained for a period of eighty years.”

31. The CNPD understands the explanations provided by the authors of the amendments. It simply reminds that the person concerned, should they come forward again, could potentially request the deletion of these reports. The Grand Ducal Police could provide for shorter retention periods in this scenario.

9. The possibility to order the deletion of personal data in the passive part of the central file
32.

Article 43quinquies, paragraph 13, point 2°, of the draft law as resulting from the amendments provides for the possibility, for the State Prosecutor of the district court in the jurisdiction where the applicant resides, to delete information, personal data, minutes, or reports from the passive part of the central file. The CNPD welcomes this addition, thus completing the framework applicable to the active part of the central file and to specific files.

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For the remainder, the National Commission refers to its opinion of March 16, 2021.

Thus decided in Belvaux on July 7, 2023.

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